

**Superior Court of the State of California
County of Orange**

DEPT C25 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5225. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: April 18, 2025

1	The Adventure Challenge, LLC vs. Bartlett 2020-01152187	Motion for Summary Judgment and/or Adjudication Plaintiff The Adventure Challenge, LLC's motion for summary judgment against defendants Brett Bartlett and Concept Management Company is GRANTED. Plaintiff has met its initial burden showing it has established each element of the claims for breach of

		contract and fraudulent inducement. Ca. Code of Civil Procedure Section 437c, Defendants have not opposed this motion. As such, they have not met their now shifted burden raising a triable issue fact exists as to either cause of action. See <i>Ganoe v. Metalclad Insulation Corp.</i> (2014) 227 Cal.App.4th 1577. Plaintiff to submit the formal order. Plaintiff to give notice.
2	Doe #1 F.H. vs. Roe 1 2022-01299995	Demurrer to Amended Complaint The demurrer by defendant The General Council of the Assemblies of God to plaintiff's First Amended Complaint [FAC] is SUSTAINED as to the 3rd and 6th causes of action, on grounds of failure to state facts sufficient to constitute a cause of action, and is otherwise OVERRULED. (Code Civ. Proc., § 430.10 [authorizing demurrer].) The Court observes that both parties argue facts and/or evidence which are not alleged in the FAC, nor subject to judicial notice. (Demurrer at 5:11-18, 11:1-3, 11:1-24, 12:23-27 [church organization, defendant's purported lack of knowledge or oversight]; Opposition at 3:19-4:21 [church organization, instances of abuse not alleged in FAC]; Ex. A to Opp [minutes from a 1998 meeting of the "Northern Pacific Latin American District Council"].) It is well settled that a demurrer can be used only to challenge defects that appear on the face of the pleading, or from matters outside the pleading of which judicial notice has been properly requested. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court has not considered these extrinsic matters. The parties are cautioned to avoid improper references to extrinsic matters on future pleading challenges, absent a proper request for judicial notice. The 3rd cause of action for sexual harassment pursuant to Civ. Code, §§ 51.9 & 52, and the 6th cause of action for violation of civil rights pursuant to Civ. Code, § 52.1, fail to state sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) Statutory claims must be pled with specificity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790; Fisher v.